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File No.: EXP202213039

RESOLUTION OF TERMINATION OF THE PROCEDURE BY VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On February 23, 2024, the Director of the Spanish Agency for Data Protection agreed to initiate sanctioning proceedings against A.A.A. (hereinafter, the respondent), through the Agreement that is transcribed:

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File No.: EXP202213039

AGREEMENT TO INITIATE SANCTIONING PROCEEDINGS

From the actions taken by the Spanish Agency for Data Protection and based on the following

FACTS

FIRST: B.B.B. (hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on November 25, 2022. The complaint is directed against A.A.A. with NIF ***NIF.1 (hereinafter, the respondent). The reasons for the complaint are as follows:

In the received document, the following is reported:

“(…) inside the establishment in question, there is a surveillance camera that is oriented towards the access door, which is made of glass, allowing it to capture the public road that runs alongside the establishment, without any administrative authorization for this. It also indicates that the establishment does not have informative signs indicating the monitored area (…)” –folio No. 1--.

Images of the camera and the glass door of access to the establishment are provided.

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the aforementioned complaint was forwarded to the respondent on December 7, 2022, for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

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The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), is recorded as delivered on December 23, 2022.

On February 2, 2023, the forwarding was reiterated to the indicated address, recorded as but without any initial response to the facts subject to forwarding by this agency.

THIRD: On February 25, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

FOURTH: The General Sub-Directorate for Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the functions assigned to control authorities in Article 57.1 and the powers granted in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions of Title VII, Chapter I, Section Two, of the LOPDGDD, being aware of the following aspects:

INVESTIGATED ENTITIES

During the present actions, the following entities have been investigated:

- ***RESTAURANT.1 with NIF located at ***ADDRESS.4
- A.A.A. with document ***NIF.1 (hereinafter, the responsible party).

RESULT OF THE INVESTIGATIVE ACTIONS

On April 11, 2023, it was obtained that the cadastral reference of the property where the restaurant is

located is ***REFERENCE.1, and its data was requested through the Real Estate Query service, from which the INE Justification associated with the file was obtained. It appears as the owner C.C.C., with document ***NIF.2 and address at ***ADDRESS.1. On the same day, a request was sent to the property owner to provide information about the surveillance system or designate the person responsible for it, via postal mail, which was delivered on May 4. On May 29, as there was no response, the request was reiterated, which was delivered on June 8.

On June 13, 2023, a response to the request was received. The owner provided a lease contract, which is associated with the file. The contract, signed on December 9, 2019, reflects that the primary use of the property is "Chinese restaurant" and that it is leased to the responsible party for five years. On the same day, June 13, the address of the tenant was checked in the registry, which is recorded as ***ADDRESS.2, to which a request for information about the surveillance system was sent via postal mail, which was returned due to incorrect address.

On June 26, the request was reiterated to the address listed in the lease contract, ***ADDRESS.3 via postal mail, which was also returned due to incorrect address.

On June 27, noting that the tenant of the premises and the recipient of the forwarding of the actions are the same person, the request was sent to the restaurant's address, which was delivered on July 10. As there was no response, the communication was reiterated on August 7; the responsible party responded on September 4.

In the request, the following information was requested:

In their response, the responsible party provided: images of the camera locations, communication regarding the surveillance system to the restaurant employees dated August 22 and 23, 2023, a copy of the phone screen displaying the images from the cameras, an image of the monitored area sign, an informational document regarding the retention of images and the exercise of rights over personal data, and indicates:

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One of the cameras captures the cash register; four other cameras capture different areas of the dining room:

The camera subject to the complaint captures an area of the public road, corresponding to part of the sidewalk immediately adjacent to the entrance of the establishment.

The responsible party provides an image of the placement of the warning sign on the glass of the entrance door to the establishment; however, the provided image does not allow the text to be read: In the image submitted in the complaint, there is no indication of a warning sign in that location.

The responsible party does not indicate the location of the image storage device nor the method of access to it in case of a complaint. They also do not specify the model of the cameras or the storage device. The commercial websites corresponding to the Vikiyin (<https://www.vikylin.com/>) and H.View (<https://hviewsmart.com/>) systems are explored.

From the statements and images provided by the responsible party, it is inferred that the system records data on a device located in one of the rooms of the establishment, and that the responsible party accesses it from their mobile phone via an app, being the only person who can do so.

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From the exploration of the products on the mentioned websites, it is concluded that these explanations are plausible, although it has not been possible to verify them.

CONCLUSIONS: The complainant provides photographs of the situation of a surveillance camera inside the restaurant which, due to its location and orientation, could capture images of part of the

public road located in front of the establishment, through the glass door of the same.

The ownership of the responsible party of the property where the restaurant is located has been determined: it is owned by a third party and it has been confirmed that the property is leased. The tenant has responded to the information request, confirms the existence of a surveillance system, and declares themselves responsible for it.

The responsible party provides images and some explanations, which are not complete, about the system and its operation. According to their statements, the system allows for the visualization and storage of images from six cameras placed in different points inside the restaurant, four of which capture different areas of the dining room, one of the cash register, and one of the access area to the establishment and part of the sidewalk in front of it.

The responsible party claims to be the only person with access to the images from the cameras and their recordings, which they do through an app and from their mobile phone, and that the images are automatically deleted after fifteen days from their recording. This has not been verified, but the information available on the websites of the brands to which the cameras belong allows for the plausibility of such claims to be established.

From the comparison between the images provided by the complainant and those provided by the responsible party, it can be established that on the date of the complaint there was no warning sign of a monitored area.

The responsible party includes in their response to the request an image in which a warning sign of a monitored area appears, but the text cannot be discerned and the responsible party has not provided details regarding it. The position of the sign is such that anyone wishing to read it would be captured by the camera oriented towards the entrance door beforehand.

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LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and

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guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

Following the amendments made to the current LOPDGDD (LO 3/2018, December 5) by Law 11/2023, of May 8, on the transposition of European Union directives regarding the accessibility of certain products and services, migration of highly qualified persons, taxation, and digitalization of notarial and registry actions; and by which Law 12/2011, of May 27, on civil liability for nuclear damage or damage caused by radioactive materials is amended, the procedural deadline established in Article 64.2 "in fine" is applied to this procedure.

The procedure shall have a maximum duration of twelve months from the date of the initiation agreement. Upon expiration of this period, it will lapse, and consequently, the proceedings will be archived.

II

Preliminary Issues

The physical image of a person, according to Article 4.1 of the GDPR, is a personal data and its protection is therefore subject to said Regulation. Article 4.2 of the GDPR defines the concept of

"processing" of personal data.

“‘processing’: any operation or set of operations performed on personal data or sets of personal data, whether by automated means or not, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, communication by transmission, dissemination or any other form of enabling access, comparison or interconnection, restriction, erasure or destruction;” Images captured by a system of cameras or video cameras are personal data, so their processing is subject to data protection regulations, unless it is domestic processing.

In this case, the claim dated 25/11/22 is examined, whereby the main fact reported is the “presence of a camera system without the proper signage affecting a public transit area.”

The facts are specified according to the alleged capture of images of the adjacent public road, as well as the presence of cameras in the area of the establishment designated for recreation and service area for customers (e.g., main dining room).

Individuals are responsible for ensuring that the installed video surveillance systems comply with current legislation, and must be able to demonstrate such compliance to the competent Authority.

It is therefore pertinent to analyze whether the processing of personal data (image of natural persons) carried out through the reported video surveillance system is in accordance with the provisions of the GDPR.

III

Non-compliance with the obligation of Article 5.1.c) GDPR. Qualification of the infringement

In accordance with the evidence available at this moment of the initiation agreement of the sanctioning procedure, and without prejudice to what results from the instruction, it is considered that the party being claimed has a video surveillance camera system that shows signs of disproportion in the capture of images.

Article 22.1 of the LOPDGDD establishes that “1. Natural or legal persons, public or private, may carry out the processing of images through camera or video camera systems for the purpose of preserving the safety of persons and property, as well as their facilities.”

The application of this provision is linked to what is established by Article 5.1.c) of the GDPR, the so-called “data minimization principle.” This article states that “Personal data shall be (...) c) adequate, relevant and limited to what is necessary in relation to the purposes for which they are processed.”

This implies that one of the obligations that the data controller has is to carry out the processing in accordance with its specific purpose and that the data processed for the achievement of that purpose are adequate, relevant, and limited in relation to the purposes for which they are processed.

For the case of data processing for video surveillance purposes, in accordance with the provisions of Article 22 of the LOPDGDD, the intended purpose of preserving persons, property, and facilities must only encompass the adequate, relevant, and limited personal data in relation to the purposes for which they are processed.

Based on what has just been indicated, it can be concluded that the installation of video surveillance cameras would be a proportional and justified measure if the following requirements are met:

1. That it is a measure capable of achieving the proposed objective.
2. That there is no other, more moderate measure to achieve such purpose with equal effectiveness.
3. That it is balanced or weighed, as it derives more benefits or advantages for the general interest than harms to other conflicting goods or values.

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Therefore, the person responsible for an establishment that carries out processing for the purposes of video surveillance as described above may install video surveillance cameras for the previously mentioned purpose only in places and under circumstances appropriate to preserve security within the establishment itself.

When analyzing proportionality, special attention must be paid to whether the measure is capable of achieving the proposed objective and whether other less intrusive means can be adopted in relation to

the Fundamental Right to the Protection of Personal Data, as this involves preserving the power of disposition and control of personal data by the data subject, as well as preventing interference with other fundamental rights and freedoms such as individuals' privacy or the free development of their personality.

Regarding proportionality, the Judgment of the Constitutional Court 207/1996, of December 16, establishes that it is "a common and constant requirement for the constitutionality of any restrictive measure of fundamental rights, including those that entail an interference with the rights to physical integrity and privacy, and particularly in the case of restrictive measures of fundamental rights adopted during a criminal process, which is determined by the strict observance of the principle of proportionality."

The impact on the Fundamental Right to the Protection of Personal Data can only arise from the achievement of the intended purpose of the processing and subject to the principle of minimization, as mere invocation is not sufficient to sacrifice the fundamental right. Given the preeminent position of fundamental rights in our legal system, such modulation will only occur to the extent strictly necessary to achieve the purposes of the processing in accordance with the aforementioned rules. This entails the need to carry out an adequate balancing that respects the correct definition and constitutional valuation of the fundamental right at stake and the interest pursued with the processing.

Therefore, once it is determined that processing for the purposes of video surveillance aimed at ensuring the safety of persons, property, and facilities is, in the specific case, a measure capable of achieving the proposed objective and that there is no other more moderate measure to achieve such purpose with equal effectiveness, it must be assessed that it is balanced or proportionate.

In the examined case, as a result of the submission of a complaint, it is noted from the documents in the file that the data controller has installed a video surveillance system for the purpose provided in Article 22 of the LOPDGDD.

The area captured by the cameras includes the tables of the restaurant where diners are located during their visit, in addition to the cash register area and the entrance door to the establishment.

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The capture of the area of the cash register and the access door to the premises does not constitute a violation of the GDPR.

Although it is observed that the camera focusing on the door of the premises captures a portion of the public road, such capture is proportionate as it only encompasses the essential part necessary to achieve the purpose of ensuring the safety of individuals, property, and facilities, in accordance with Article 22.2 of the LOPDGDD.

However, the same does not occur regarding the capture of the tables in the restaurant where diners are located when they visit, as inferred from the evidence available at this stage of the procedure, since it involves a treatment that captures images constantly, covering all the tables that make up the dining area.

By its very nature, the area of the dining tables is a location where the individuals affected by the treatment may remain for a long time, and in a situation where their Fundamental Right to the Protection of Personal Data may be affected, as well as other rights and freedoms, such as their privacy or the free development of their personality, especially since these places are typically visited during leisure time.

Furthermore, there is no special reason justifying the surveillance of places such as restaurant tables concerning the security of the establishment, as might exist in relation to confined spaces such as the entrance/exit or the cash register. In this sense, the permanent capture of the room and the tables when customers are present visiting the restaurant would not comply with the requirements of the principle of data minimization, which stipulates that personal data processing should be "adequate, relevant, and limited to what is necessary in relation to the purposes for which they are processed." In this regard, it is important to note that, according to the information provided by the responsible

party, the captured images are retained for a period of fifteen days (document in response to the Agency) or one month (informative document about the cameras in the premises). Thus, the data of all diners are stored during that period. The impact on the Fundamental Right to the Protection of Personal Data, understood as the power of disposition and control held by the data subject, is far greater than the alleged interest that the respondent seeks to achieve, which is the preservation of the safety of property and individuals in the area of the restaurant tables.

From the information and documentation in the file, the respondent has not substantiated the necessity of carrying out this personal data processing based on the purpose concerning the area of the diners' tables, and according to the circumstances described above. Therefore, it cannot be concluded that it respects the data minimization principle established in Article 5.1(c) of the GDPR.

IV

Classification of the infringement and qualification of the infringement for the purposes of prescription.

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The known facts could constitute an infringement attributable to the respondent for violating the content of Article 5.1(c) GDPR. Article 83.5 GDPR states the following:

“Violations of the following provisions shall be sanctioned, in accordance with paragraph 2, with administrative fines of up to 20,000,000 EUR or, in the case of a company, an amount equivalent to 4% at most of the total annual global turnover of the previous financial year, opting for the higher amount:

a) the basic principles for processing, including the conditions for consent under Articles 5, 6, 7, and 9;” Article 72, paragraph 1(a) establishes a prescription period of three years for “infringements that constitute a substantial violation of the articles mentioned therein and, in particular, the following: a) The processing of personal data violating the principles and guarantees established in Article 5 of Regulation (EU) 2016/679.

V

Proposal for sanction

Article 83.2 of the GDPR contains a list of criteria or factors that must be assessed to determine the amount of the fine. The provision states:

“Administrative fines shall be imposed, depending on the circumstances of each individual case, as an additional or substitute measure for the measures provided for in Article 58, paragraph 2, letters a) to h) and j). In deciding the imposition of an administrative fine and its amount in each individual case, the following shall be duly taken into account:

- a) the nature, gravity, and duration of the infringement, taking into account the nature, scope, or purpose of the processing operation in question, as well as the number of affected data subjects and the level of damage and harm they have suffered;
- b) the intentionality or negligence in the infringement;
- c) any measures taken by the controller or processor to mitigate the damage and harm suffered by the data subjects;
- d) the degree of responsibility of the controller or processor, taking into account the technical or organizational measures they have implemented under Articles 25 and 32;
- e) any previous infringement committed by the controller or processor;
- f) the degree of cooperation with the supervisory authority in order to remedy the infringement and mitigate the possible adverse effects of the infringement;
- g) the categories of personal data affected by the infringement;

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h) the manner in which the supervisory authority became aware of the infringement, in particular whether the controller or the processor reported the infringement and, if so, to what extent;
i) when the measures indicated in Article 58(2) have previously been ordered against the controller or the processor in relation to the same matter, the compliance with such measures;
j) adherence to codes of conduct under Article 40 or to certification mechanisms approved under Article 42, and
k) any other aggravating or mitigating factor applicable to the circumstances of the case, such as the financial benefits obtained or the losses avoided, directly or indirectly, through the infringement.”
In relation to point k) of Article 83(2) of the GDPR, the LOPDGDD, Article 76, “Sanctions and corrective measures,” provides:

“2. In accordance with the provisions of Article 83(2)(k) of Regulation (EU) 2016/679, the following may also be taken into account:

- a) The continued nature of the infringement.
- b) The connection of the infringer's activity with the processing of personal data.
- c) The benefits obtained as a result of the commission of the infringement.
- d) The possibility that the conduct of the affected party may have induced the commission of the infringement.
- e) The existence of a merger by absorption after the commission of the infringement, which cannot be attributed to the absorbing entity.
- f) The impact on the rights of minors.
- g) Having, when not mandatory, a data protection officer.
- h) The voluntary submission by the controller or processor to alternative dispute resolution mechanisms, in cases where there are disputes between them and any interested party.”

In view of the information and documentation in the file, and in any case, without prejudice to the outcome of the investigation, it is considered that the following circumstances affecting the determination of the amount of the fine to be imposed on the respondent are present in the examined facts:

When justifying the sanction for the infringement of Article 5(1)(c) of the GDPR, the following is taken into account:

- the nature of the infringement in having a video surveillance system that is directed towards the area reserved for the free recreation of customers continuously, processing data of identifiable or potentially identifiable individuals in an indeterminate number, which may also affect other rights and freedoms of customers or passersby (Article 83(2)(a) GDPR).
- the intentionality or negligence of the infringement (Article 83(2)(b) GDPR), given that the required prior proportionality assessment was not carried out before implementing the processing that would affect all individuals visiting the restaurant.

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In relation to the justification of the amount for the infringement of Article 5(1)(c) of the GDPR, considering the circumstances indicated in this section, it is deemed appropriate to propose an amount of FOUR THOUSAND EUROS (€4,000), without prejudice to what results from the investigation.

VI

Possible measures

If the infringement is confirmed, it could be agreed to impose on the controller the adoption of appropriate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58(2)(d) of the GDPR, according to which each supervisory authority may “order the controller or processor to ensure that the processing operations

comply with the provisions of this Regulation, where appropriate, in a specific manner and within a specified time frame...". The imposition of this measure is compatible with the sanction consisting of an administrative fine, as provided in Article 83(2) of the GDPR.

In the case of the imposition of measures, the respondent must only capture images of the cash register and the entrance of the premises, without being able to continuously capture the area of the restaurant tables where diners are located during their visit, which must also be evidenced before this Agency.

It is warned that failure to comply with the possible order to adopt measures imposed by this agency in the sanctioning resolution may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in Articles 83.5 and 83.6, which may motivate such conduct to initiate further administrative sanctioning proceedings.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,
IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against A.A.A., with NIF ***NIF.1, for the alleged infringement of Article 5(1)(c) GDPR, classified in Article 83.5(a) of the GDPR.

SECOND: TO APPOINT R.R.R. as the instructor and S.S.S. as the secretary, indicating that they may be recused, if applicable, in accordance with the provisions of Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the complaint filed by the complainant and its documentation, as well as the documents obtained and generated by the General Subdirectorate of Data Inspection in the proceedings prior to the initiation of this sanctioning procedure.

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FOURTH: For the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be €4,000, without prejudice to what results from the instruction.

Without prejudice to what results from the instruction, for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond for the facts that motivate the initiation of the procedure and its possible qualification would be an administrative fine. However, in accordance with Article 83.7 of the GDPR, and the provisions of Article 77.2 of the LOPDGDD, due to the category of the subject allegedly responsible for the infringement, this sanction would be replaced by the declaration of the infringement.

FIFTH: NOTIFY this agreement to A.A.A., with NIF ***NIF.1, granting a hearing period of ten working days for them to formulate allegations and present the evidence they deem appropriate. In their written allegations, they must provide their NIF and the file number that appears in the heading of this document.

If no allegations are made against this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP).

In accordance with the provisions of Article 85 of the LPACAP, they may acknowledge their responsibility within the period granted for formulating allegations to this initiation agreement; this will entail a 20% reduction of the sanction that may be imposed in this procedure. With the application of this reduction, the sanction would be set at €3,200, resolving the procedure with the imposition of this sanction.

Similarly, they may, at any time prior to the resolution of this procedure, make voluntary payment of the proposed sanction, which will imply a 20% reduction of its amount. With the application of this

reduction, the sanction would be set at €3,200, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative with the one corresponding to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to formulate allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions are applicable, the amount of the sanction would be set at €2,400.

In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction.

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In the event that they choose to proceed with the voluntary payment of either of the amounts indicated above €3,200 or €2,400, they must make it effective by depositing it into account no. IBAN:

ES00-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX) opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which they are entitled.

They must also send the proof of deposit to the General Subdirectorate of Inspection to continue with the procedure in accordance with the amount deposited.

Finally, it is noted that according to the provisions of Article 112.1 of the LPACAP, there is no administrative appeal against this act.

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Mar España Martí

Director of the Spanish Agency for Data Protection

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SECOND: On March 13, 2024, the party being claimed has proceeded to pay the sanction in the amount of €2,400, making use of the two reductions provided in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility.

THIRD: The payment made, within the period granted to formulate allegations to the opening of the procedure, entails the renunciation of any action or administrative appeal against the sanction and the acknowledgment of responsibility in relation to the facts referred to in the Initiation Agreement.

FOURTH: In the previously transcribed Initiation Agreement, it was indicated that, if the infringement were confirmed, it could be agreed to impose on the responsible party the adoption of appropriate measures to adjust their actions to the regulations mentioned in this act, in accordance with the provisions of the aforementioned Article 58.2 d) of the GDPR, according to which each supervisory authority may “order the controller or processor to ensure that the processing operations comply with the provisions of this Regulation, where appropriate, in a specified manner and within a specified period...”.

Having acknowledged the responsibility for the infringement, the imposition of the measures included in the Initiation Agreement is appropriate.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), to each supervisory authority and as established in Articles 47, 48.1, 64.2, and 68.1 of the

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Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter, LOPDGDD), grants the Director of the Spanish Agency for the Protection of Data the authority to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for the Protection of Data shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Termination of the Procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in Sanctioning Procedures" provides as follows:

- "1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.
2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another of a non-pecuniary nature but the impropriety of the latter has been justified, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except regarding the restoration of the altered situation or the determination of compensation for damages caused by the commission of the infringement.
3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness shall be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided for in this section may be increased by regulation."

In accordance with the above,

the Director of the Spanish Agency for the Protection of Data RESOLVES:

FIRST: TO DECLARE the termination of procedure EXP202213039, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: TO ORDER A.A.A. to notify the Agency of the adoption of the measures described in the legal grounds of the initiation Agreement transcribed in this resolution within 3 months from the date this resolution becomes final and enforceable.

THIRD: TO NOTIFY this resolution to A.A.A.

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In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and paragraph 5 of the fourth additional provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within a period of two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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